

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Benjamin Shelton	Team: Squad #11	CCRB Case #: 202002743	☒ Force ☐ Discourt. ☐ U.S. ☐ Abuse ☐ O.L. ☐ Injury
Incident Date(s) Sunday, 01/12/2020 8:30 AM	Location of Incident: § 87(2)(b)	18 Mo. SOL 2/26/2022	Precinct: 121
Date/Time CV Reported Fri, 04/10/2020 10:47 AM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Thu, 04/16/2020 11:28 AM

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. POM Christophe Schiro	15133	956244	121 PCT
2. POM Nathaniel Beck	14800	963866	121 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Christophe Schiro	Force: Police Officer Christopher Schiro used physical force against § 87(2)(b)	A . Closed - Pending Litigation
B . POM Nathaniel Beck	Force: Police Officer Nathaniel Beck used physical force against § 87(2)(b)	B . Closed - Pending Litigation

Case Summary

On April 10, 2020, § 87(2)(b) filed this complaint over the phone with IAB as reflected in IAB log #20-10215. On April 16, 2020, the CCRB received this complaint in IAB log #20-10415.

The IAB log provided a cellphone number and a home address for § 87(2)(b). On April 20, 2020, CTS+ was queried for duplicate complaints and revealed a prior complaint by § 87(2)(b) 201908707, which provided a home phone number and an email address for § 87(2)(b). On April 22, 2020, a voicemail was left on her cellphone and her father took a message for § 87(2)(b) to call back on the home phone. Later that day, § 87(2)(b) called from her cellphone and confirmed her contact information. Due to related criminal charges, § 87(2)(b) agreed to speak with her criminal attorney before providing any statements to the CCRB.

Between April 30, 2020, and May 11, 2020, § 87(2)(b)'s cellphone number was called seven additional times on five separate days. On the first two calls, voicemails were left. On the subsequent five calls, the call rang and then automatically disengaged. No calls have been returned. Between April 30, 2020, and May 11, 2020, § 87(2)(b)'s home phone number was called an additional five times. Her mother took a callback message the first time and voicemails were left the last four times. No calls have been returned.

Between April 30, 2020, and May 14, 2020, § 87(2)(b) was emailed three times and none of the emails were returned.

§ 87(2)(b) [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Between May 6, 2020, and May 12, 2020, § 87(2)(b)'s attorney was called three times and voicemails were left each time.

On May 15, 2020, queries of the databases of the Departments of Correction of New York City and New York State revealed that § 87(2)(b) was not currently incarcerated.

As § 87(2)(b) is yet to return any calls or emails since she stated a desire to speak with her attorney before cooperating with the investigation, it is recommended that this complaint be **closed pending litigation**.

Squad No.: 11

Investigator:	<u>Benjamin Shelton</u>	<u>Inv. Benjamin Shelton</u>	<u>5/15/20</u>
	Signature	Print Title & Name	Date

Squad Leader:	<u>Edwin Pena</u>	<u>IM Edwin Peña</u>	<u>05/15/20</u>
	Signature	Print Title & Name	Date

Reviewer:	_____	_____	_____
	Signature	Print Title & Name	Date